

# Data Usage Agreement (DUA) — EmoRoad Multimodal Dataset

**Version:** 3

**Date:** 28/06/2026

**Data controller / provider:** Prof. Stephen Jia Wang, The Hong Kong Polytechnic University (PolyU)

**Contact:** [stephen.j.wang@polyu.edu.hk](mailto:stephen.j.wang@polyu.edu.hk)

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## 1. Purpose of this Agreement

This Data Usage Agreement (“Agreement”) governs access to and use of the **EmoRoad Multimodal Dataset** (“Dataset”), which contains **human participant data**, including **identifiable or potentially re-identifiable information** (e.g., facial videos, behavioural and physiological signals).

By requesting access to, downloading, or using the Dataset, the Data User agrees to all terms and conditions set out in this Agreement.

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## 2. Definitions

- **“Dataset”**: All files, records, documentation, annotations, and metadata made available under this Agreement as part of the EmoRoad dataset, including (but not limited to):
  - facial video recordings and/or images of participants;
  - electroencephalography (EEG) recordings;
  - eye-tracking data;
  - driving behaviour and vehicle dynamics data (e.g., steering, braking, speed);
  - environmental/road condition information;
  - associated annotations and metadata.
- **“Data Provider(s)”**: The Principal Investigator(s) and their institution(s) responsible for releasing the Dataset, i.e., Prof. Stephen Jia Wang at School of Design, The Hong Kong Polytechnic University (PolyU).

- **“Data User”**: Any individual person who applies for and is granted access to the Dataset under this Agreement. If the Data User is acting on behalf of an institution or research group, the term “Data User” includes that institution or group.
  - **“Authorised Institution”**: The institution or organisation named in the Data User’s access application (e.g., university, research institute).
  - **“Authorised Project”**: The specific project described in the Data User’s access request (e.g., project title and brief description).
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### 3. Permitted use (internal research/analysis only)

3.1 The Data User may use the Dataset **for legitimate internal research and analysis**, including methodological development and evaluation, in academic or commercial research settings, subject to compliance with this Agreement and applicable laws and institutional policies.

3.2 The Data User must **not**:

- redistribute the Dataset, in whole or in part, to any person or entity not covered by an applicable access agreement;
- provide the Dataset, in whole or in part, as a product, service, or hosted dataset offering; or
- use the Dataset in any manner that would enable participant re-identification, participant contact, or disclosure of identifiable raw data.

3.3 The Data User is responsible for ensuring that any ethics/IRB approval required by their institution or local regulations for their intended use has been obtained, where applicable.

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### 4. Prohibition of re-identification & participant interaction

4.1 The Dataset contains identifiable or potentially re-identifiable human data. The Data User must **not attempt to re-identify** any participant by any means.

Specifically, the Data User shall not:

- attempt to match data in the Dataset to any other data source (public or private) for the purpose of identifying individuals;
- use face recognition, voice recognition, or any biometric identification technique to identify participants;

- contact, attempt to contact, or otherwise interact with any participant.

4.2 If the Data User accidentally learns or otherwise becomes aware of the identity of any participant, they must:

- immediately cease any analysis that uses identified information;
  - not record or further disclose the identity; and
  - promptly inform the Data Provider(s) via [stephen.j.wang@polyu.edu.hk](mailto:stephen.j.wang@polyu.edu.hk).
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## 5. Data security, storage, and access control

5.1 The Data User must implement reasonable technical and organisational safeguards to protect the Dataset, including (at minimum):

- storing the Dataset on secure, access-controlled systems (e.g., institutional servers or encrypted storage);
- limiting access to authorised personnel within the Data User's group working on the Authorised Project;
- avoiding storage of the Dataset on public or insecure services (e.g., public cloud folders without access control or publicly shared links).

5.2 The Dataset should be stored and processed in a manner compliant with:

- the Data User's institutional policies on data protection and information security; and
- applicable data protection regulations (e.g., GDPR and relevant local privacy laws), where applicable.

5.3 The Data User must ensure that any person within the Data User's group who is granted access:

- is informed of these terms; and
  - agrees to comply with them.
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## 6. Restrictions on redistribution / onward sharing

6.1 The Data User must **not redistribute** the Dataset, in whole or in part, to any other person, group, or platform who is not covered by this Agreement.

6.2 If access needs to be extended to collaborators at other institutions, those collaborators must:

- submit their own access request; and
- agree separately to the applicable DUA (i.e., obtain the data directly under signed/agreed terms).

6.3 The Data User must not upload the Dataset to any public or semi-public repository or sharing service.

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## **7. Outputs, publication, and citation**

7.1 The Data User may share derived, non-identifiable results in publications or presentations (e.g., aggregate statistics, plots, evaluation metrics, trained model outputs), provided that:

- the shared materials do not permit re-identification of individuals; and
- no identifiable video frames or raw signals are disclosed that could compromise participant privacy.

7.2 In any publication, preprint, presentation, or derivative work using the Dataset, the Data User must properly cite the Dataset and any associated dataset paper, data descriptor, or other relevant publication where available, following the citation information provided on the dataset repository landing page where possible.

7.3 The Data User must not imply that the Data Provider(s) or participants endorse the Data User's findings, methods, or interpretations.

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## **8. Data breach / incident management**

8.1 The Data User must promptly notify the Data Provider(s) at [stephen.j.wang@polyu.edu.hk](mailto:stephen.j.wang@polyu.edu.hk) if they become aware of:

- any suspected or actual data breach, loss, or unauthorised access involving the Dataset; or
- any accidental re-identification or increased risk of participant identification.

8.2 The Data User must take reasonable steps to contain and mitigate any incident and cooperate with reasonable requests from the Data Provider(s) aimed at reducing participant risk.

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## **9. Intellectual property notice**

9.1 This Agreement does not transfer ownership of any intellectual property rights. Any intellectual property notifications are limited to re-iterating existing or standard legal protections.

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## **10. No warranty and limitation of liability**

10.1 The Dataset is provided “as is”, without any warranty of any kind, express or implied, including but not limited to accuracy, completeness, fitness for any particular purpose, or freedom from errors/omissions.

10.2 To the maximum extent permitted by law, the Data Provider(s) and their institution(s) shall not be liable for any direct, indirect, incidental, consequential, or other damages arising from use or inability to use the Dataset, or from interpretations or decisions made based on analyses of the Dataset.

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## **11. Duration and termination of access; deletion**

11.1 This Agreement comes into effect once the Data User is granted access to the Dataset and remains in force for as long as the Data User retains any copy of the Dataset or any data derived from it that could reasonably enable participant re-identification.

11.2 The Data Provider(s) may revoke the Data User’s access if the Data User is reasonably suspected of breaching this Agreement or if continued access would pose unacceptable ethical, legal, or security risks.

11.3 Upon request by the Data Provider(s), or upon termination of this Agreement, the Data User must:

- delete or irreversibly destroy all copies of the Dataset in their possession, including backups; and
- confirm in writing, if requested, that such deletion has been completed.

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## **12. Amendments**

The Data Provider(s) reserve the right to update or amend this Agreement to reflect changes in law, institutional policy, or best practice. Data Users may be required to agree to an updated DUA to retain or renew access.

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### **13. Acceptance of terms**

By requesting access to the Dataset and/or downloading any part of it, the Data User confirms that:

1. they have read and understood this Agreement;
  2. they agree to be bound by its terms and conditions;
  3. they have the authority to accept these terms on behalf of their Authorised Institution (if applicable);
  4. information provided in their access request is accurate and truthful.
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### **Data User Information (optional for signed version / record-keeping)**

- **Name of Data User:** \_\_\_\_\_
- **Institution / Organisation:** \_\_\_\_\_
- **Department / Lab:** \_\_\_\_\_
- **Position / Role:** \_\_\_\_\_
- **Email:** \_\_\_\_\_
- **Project title / Purpose of use:** \_\_\_\_\_
- **Date:** \_\_\_\_\_
- **Signature:** \_\_\_\_\_